WHEREAS the High Court, on the 9th of September, 2025, ordered the registration of an award as an order of the honourable court for purposes of execution of moveable assets belonging to Uzumba Maramba Pfungwe Zvataida Rural District Council;

AND WHEREAS it is provided by section 2(1) of the Presidential Powers (Temporary Measures) Act [*Chapter 10:20*] that:

"When it appears to the President that—

(a) a situation has arisen or is likely to arise which needs to be dealt with urgently in the interests of defence, public safety, public order, public morality, public health, the economic interests of Zimbabwe or the general public interest; and

(b) the situation cannot adequately be dealt with in terms of any other law; and

(c) because of the urgency, it is inexpedient to await the passage through Parliament of an Act dealing with the situation;

then, subject to the Constitution and this Act, the President may make such regulations as he considers will deal with the situation.";

AND WHEREAS the attachment of the moveable assets of Uzumba Maramba Pfungwe Zvataida Rural District Council includes critical service delivery equipment such as two Massy Ferguson Tractors, one New Holland Tractor, two Tractors trailers, Kipor generator, Isuzu Frontier, Nissan Diesel Lorry, Generator, Nissan Hard body NP300, Nissan hard body, Isuzu Fleeter, Dump Trailer, HP Desktop set, eight Lenovo Desk top sets, 5kv Solar System, seven desks, five 3 drawer desks, 2 HP printers, various pieces of furniture and motor vehicles essential for the delivery of basic services to the residents of the Local Authority;

AND WHEREAS the inability to provide the aforesaid services in consequence of the attachment is likely to expose residents of

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the Local Authority and its neighbours to catastrophic health risks resulting from uncollected refuse and no road works;

AND WHEREAS it is estimated that the lives of over 150 000 residents are at the immediate risk of contracting diseases such as dysentery, typhoid and cholera unless immediate action be taken to restore the ability to the Local Authority to provide the necessary services to prevent any such outbreak:

NOW, THEREFORE, His Excellency the President, in terms of section 2 of the Presidential Powers (Temporary Measures) Act [*Chapter 10:20*], hereby makes the following regulations:—

Title

1. These regulations may be cited as the Presidential Powers (Temporary Measures) (Extension of State Liabilities Act to the Assets of Uzumba Maramba Pfungwe Zvataida Rural District Council) Regulations, 2025.

Interpretation

2. In these regulations, "Uzumba Maramba Pfungwe Zvataida Rural District Council" or Local Authority means the Local Authority of that name duly constituted in terms of the Rural District Councils Act [*Chapter 29:13*].

Legal proceedings against Uzumba Maramba Pfungwe Zvataida Rural District Council

3. (1) The State Liabilities Act [*Chapter 22:13*] applies with necessary changes to legal proceedings against Uzumba Maramba Pfungwe Zvataida Rural District Council.

(2) The legal proceedings referred to in subsection (1) include all legal proceedings against the Local Authority that were commenced or completed immediately before the date of commencement of these regulations.

(3) In particular, and for the avoidance of doubt, all assets of the Local Authority that were attached or are threatened with

attachment and sale in execution by virtue of High Court order number HC.3032/25, are hereby released from attachment and revert to or remain in the possession of the Local Authority for the duration of these regulations.